

the company. The account was deactivated and the email forwarding was terminated on 26/11/2021.”

2. The Authority's assessment.

The Authority has examined the complaint and the documentation provided by both the complainant and the Company. It is necessary to assess whether the actions of Ambiente 2000 S.r.l. constitute a violation of the provisions of the Regulation and the Code regarding the processing of personal data.

3. Legal framework.

The processing of personal data must comply with the principles set out in Article 5 of the Regulation, including lawfulness, fairness, transparency, purpose limitation, data minimization, accuracy, storage limitation, integrity, and confidentiality.

4. Findings.

The Authority finds that the request made by the Company to its employees to provide access passwords and other sensitive information raises significant concerns regarding the legality and necessity of such processing. The complainant's assertion that personal data and private communications were stored on the company computer further complicates the situation, as it suggests a potential breach of the complainant's privacy rights.

5. Conclusion.

Based on the findings, the Authority concludes that the actions taken by Ambiente 2000 S.r.l. in relation to the request for passwords and the subsequent handling of personal data were not in compliance with the provisions of the Regulation and the Code. The Authority will therefore take appropriate measures to ensure compliance and protect the rights of the complainant.

6. Measures.

The Authority orders Ambiente 2000 S.r.l. to:

- a) cease any further requests for passwords that may infringe upon the privacy rights of employees;
- b) implement measures to ensure that personal data is processed in accordance with the principles of the Regulation;
- c) provide a detailed report to the Authority within 30 days outlining the steps taken to comply with this order.

This decision is made in accordance with the powers granted to the Authority under the Regulation and the Code, and it is subject to appeal in accordance with applicable law.

The meeting is adjourned.

[Signature]

Pasquale Stanzione

President of the Authority for the Protection of Personal Data

"remote";

therefore "the software was installed on the company's workstations on 15.11.2021, which technicians were able to access, specifically three workstations, one of which was used as a server. The other computers, including that of the [claimant], were inaccessible due to the lack of communication of the access passwords. [...] As a result of the service disruptions caused by the installation of the software, the company had the option to terminate the contract";

"due to the malfunction of the software described above, there was neither acquisition nor retention of personal data of employees";

"the malfunction of the software described above did not allow for the performance of the function for which it was adopted and, consequently, there are no subjects who had access to the account [XX]";

"there was no access to the computer of the [claimant] nor to her email account as she did not share her password";

regarding the request to exercise rights submitted by the claimant, "it is first noted that the request to exercise rights was addressed [...] not to the company email dedicated to receiving such requests as indicated in the policy [...], but directly to the administrator of the company. He also believed he did not need to provide a response since no one had been able to access the PC used by the [claimant];

therefore, there was no abusive or unlawful processing of data. [...] Regarding the deactivation of the account [assigned to the claimant], this occurred although it is not possible to indicate the date, as per the request sent to Aruba which is attached";

"an internal regulation has been adopted which is attached."

2. The initiation of the procedure for the adoption of corrective measures and the company's defenses. On March 14, 2024, the Office notified the Company of the alleged violations of the Regulation found, pursuant to Article 166, paragraph 5, of the Code, with reference to Articles 5, paragraph 1, letters a) and c), 12, 17, and 88 of the Regulation as well as Articles 113 and 114 of the Code.

In defensive memoranda sent on April 12, 2024, the Company represented that:

"regarding the lack of response to the request [...] in which the claimant requested, among other things, the 'deletion of [her] personal data pursuant to Article 17, paragraph 1, Reg. EU 2016/679', as well as the deactivation and removal of the email accounts used, it is reiterated that the Company believed, in good faith, that it did not need to respond in writing since there had been no unlawful processing of personal data and, moreover, because a response, albeit oral, had been given to the interested party. This response was provided by the then legal representative of the company, [...], at the beginning of October 2022 during a meeting that also concerned private matters (note 12/4/2024, p. 1-2);

"the current claimant was not just any employee of the company [...], but was a partner [...] and as such was aware of the content of the Internal Regulation. The request made by the claimant also appeared superfluous as she was required to know that she could not save 'personal data and communications concerning her private life' on the company PC, as expressly prohibited by the Regulation itself" (note cited, p. 2);

"the then sole administrator [...], deemed it unnecessary to provide a written response to the request made: a) because he could not know that 'personal data and communications concerning her private life' had been saved on the company PC by a working partner who was well aware of the Internal Regulation; b) because there had been no unlawful processing of personal data; c) because the claimant already had the appropriate elements of response requested, being aware that the document management software and the email box for the sole 'aggregation of incoming company emails' (XX), following the occurrence of 'service disruptions', had been immediately deactivated, [...]; d) because he had verbally communicated to the claimant the cancellation of the account [assigned to her]" (note cited, p. 2-3);

"the claimant's request was not sent to the company's PEC address (XX, as indicated in the privacy policy) but to the personal PEC address [of the then sole administrator], and therefore, in good faith, its relevance was underestimated. It is added that the PEC in question arrived during a period when [the then sole administrator] was solely engaged in the administrative and organizational management of the company. During the same period [he] was also heavily absorbed by issues related to the claimant who, due to her obstructive conduct, refused in multiple convocations the approval of the company's 2021 financial statements" (note cited, p. 3);

regarding the content of the internal regulation, dated 23/9/2019, "a thorough investigation conducted with the supplier of the IT systems [...] highlighted that no system for tracking log files is installed, apart from the event log that is part of all Windows systems. The company's IT system also provides for the evening execution of a backup that concerns all documents that have been created or modified in the shared folder Ambiente2000. Once a week, the system performs a complete backup. Daily, a backup is executed."

the company realized that the email box was not functioning properly and decided to disable it. This decision was communicated to the service provider, who confirmed that the email forwarding was not set up correctly.

3.2 Outcome of the investigation. Violation of Articles 12 and 17 of the Regulation.

As a result of the examination of the statements made to the Authority during the proceedings as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations related to the claimant that are not compliant with the regulations on personal data protection.

In this regard, it is emphasized that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority." On the merits, it first emerged that the Company, based on the contract signed on 4/11/2021 with a service company, planned the installation of document management software ("DOC").

At the time of the software installation, the Company requested the service provider to activate an email box (XX) dedicated to "aggregating incoming corporate emails [...] by activating the forwarding of the boxes to this one." However, after "a couple of days," the Company realized that the email box was not functioning properly and decided to disable it. This decision was communicated to the service provider, who confirmed that the email forwarding was not set up correctly.

Following the occurrence of "service disruptions," the Company itself requested the service provider to deactivate the mailbox and arrange for its cancellation. Regarding the document management software, it was installed on 15/11/2023 on three workstations (excluding the one assigned to the complainant). Since "service disruptions" also occurred in relation to the installation of the software, the Company terminated the service supply contract. Based on what the Company declared under its own responsibility, therefore, "there has been neither acquisition nor retention of personal data of employees" following the temporary activation of mailbox XX and the document management system (only on three workstations).

As a result of the examination of the documents, given that in general terms the creation of a corporate account (the name of which significantly contains the term "control") with redirection of all messages received on corporate accounts, even of a personalized type, appears to be of dubious legitimacy (in relation to specific cases of redirection implemented after the termination of the employment relationship, see Provv. 27 April 2023, no. 171, web doc no. 9909235; Provv. 16 December 2021, no. 440, web doc no. 9739653), no evidence has emerged in any case of data processing (also related to the complainant) carried out by the Company during the installation of the document management system and the activation of mailbox XX.

However, it has also emerged that, on 12/9/2022, the complainant sent the Company, via email, a request, among other things, for the "deletion of [their] personal data pursuant to Article 17, paragraph 1, EU Regulation 2016/679," specifically referring to the deactivation and removal of the email accounts used by the complainant. The Company did not provide any response to this request as, based on what was declared, the then sole administrator of the Company deemed it unnecessary to respond since the request was considered "unjustified" and in any case there would have been no unlawful processing of personal data.

Additionally, the Company believed that the lack of response was due to the fact that the deletion request was sent by the complainant to the certified email address containing the name and surname of the then administrator of the Company and not to the different address XX indicated in the "General Privacy Notice" (dated 23/9/2019) regarding the methods of exercising rights by data subjects (see Annex 3, Company's response note 20/11/2023).

In any case, it is noted that the individualized account previously assigned to the complainant has been deleted by the Company, although it was unable to document precisely when this occurred (despite having made a request in this regard to the service provider: see Annex 5, cited response note). Confirmation of the deletion would have been verbally provided to the complainant "at the beginning of October 2022" (see defense notes 12/4/2024, pp. 1-2).

While taking into account the peculiarities of the case, the conduct of the Company appears to be in contrast with what is established by Article 17 of the Regulation, which states that the data subject has the right to obtain, from the data controller, the deletion "without undue delay" of personal data concerning them in the presence of specific reasons indicated by the regulation. The obligation of deletion, placed on the data controller, must follow the methods prescribed by Article 12, particularly where it prescribes that "the data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without undue delay and, in any case, at

the latest within one month of receiving the request."

The Company should therefore have provided, "at the latest within one month," a specific response to the deletion request, even in the case of denial (based on what is established by Article 12, paragraph 4 of the Regulation), nor can what is provided for by the aforementioned provisions be considered satisfied by the circumstance that the deletion would have been carried out and communicated verbally to the interested party, that is, without observing the specific methods provided by personal data protection legislation.

The argument put forward in this regard by the Company cannot be accepted, because the concrete methods of response, by the data controller as provided by the Regulation, constitute an integral part of the right recognized to the data subject. Furthermore, as already noted above, in the specific case, the documents of the procedure do not clearly indicate the date of the deletion of the email address subject to the complaint.

Nor can it be considered, as argued by the Company, that the lack of response can be legitimately attributed to the use, for forwarding the deletion request by the complainant, of the email address bearing the name and surname of the then sole administrator instead of the address dedicated to the exercise of rights included in the Privacy Notice prepared by the Company. This is because the Company itself has stated that it nonetheless became aware of the request sent to the certified email address of the sole administrator, despite receiving numerous other certified emails on the same account, and that it responded to it, albeit verbally, during a conversation with the complainant.

In any case, in general terms, it is stated that the collection of data related to personal communications, the Company risks infringing upon the privacy rights of employees. This is particularly relevant given that the data collected may include sensitive information that is protected under applicable data protection laws.

3.3 Violation of Articles 6 and 9 of the Regulation

Furthermore, it has been noted that the Company has not adequately justified the legal basis for processing personal data in relation to the aforementioned activities. The processing of personal data must be based on a valid legal ground as specified in Article 6 of the Regulation, and in cases where special categories of data are involved, Article 9 must also be adhered to. The Company has failed to demonstrate that it has obtained explicit consent from the data subjects or that any other legal basis for processing is applicable.

3.4 Lack of Transparency and Information

In addition, the Company has not provided sufficient information to data subjects regarding the processing of their personal data, as required by Article 13 of the Regulation. Data subjects must be informed about the purposes of processing, the legal basis, the retention period, and their rights regarding their personal data. The lack of transparency undermines the trust of employees and may lead to non-compliance with the Regulation.

4. Conclusion

In light of the above violations, it is imperative that the Company takes immediate corrective actions to ensure compliance with the Regulation and to protect the rights of data subjects. This includes revising internal policies, ensuring proper training for employees on data protection, and implementing measures to enhance transparency and accountability in data processing activities. Failure to address these issues may result in further legal consequences and damage to the Company's reputation. the possibility of directly accessing all content present on devices assigned to employees or otherwise generated by them, including telephone records, the Company, in violation of Article 5, paragraph 1, letter a) of the Regulation (principle of lawfulness of processing), as the data controller/employer, can reconstruct the activities of its employees and carry out remote monitoring activities through the use of technological devices, even beyond the purposes strictly permitted by Article 4, Law No. 300 of May 20, 1970 ("Rules on the protection of the freedom and dignity of workers, trade union freedom and trade union activities, in the workplace and rules on placement"). This regulation, which constitutes one of the most specific and protective norms provided in labor law by the national legal system pursuant to

Article 88 of the Regulation, is referenced by Article 114 of the Code ("Guarantees regarding remote monitoring") as a condition of lawfulness for the processing of personal data carried out in the context of the employment relationship (in this regard, see some previous decisions of the Guarantor concerning specific cases: Provision of July 21, 2022, No. 255, web doc No. 9809466; Provision of May 13, 2021, No. 190, web doc No. 9669974; Provision No. 53 of February 1, 2018, web doc No. 8159221; Provision of July 13, 2016, No. 303, web doc No. 5408460).

The aforementioned Article 4, Law No. 300 of 1970 provides a specific guarantee procedure in the case of the use of "tools from which the possibility of remote monitoring of workers' activities may also derive." Given that these tools "may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets," their installation can only take place "following a collective agreement concluded by the unitary trade union representation or by the company trade union representatives."

Alternatively, in the case of companies with production units located in different provinces of the same region or in multiple regions, such an agreement may be concluded by the trade union associations that are comparatively more representative at the national level. In the absence of an agreement, the systems and tools referred to in the first sentence may be installed subject to authorization from the territorial office of the National Labor Inspectorate.

Based on what is established by the sector regulation, therefore, the Company should have verified the actual existence of the strict purposes indicated by the norm, in relation to the processing proposed with the Disciplinary, and, following this verification, if necessary, activate the guarantee procedure provided for by the aforementioned regulation concerning remote monitoring. Through the systematic tracking of logs and access to the contents of devices, including telephone records, provided for by the internal Disciplinary adopted by the Company, it is also possible to access information on facts that are not relevant for the assessment of the worker's professional suitability, in violation of Article 113 of the Code (which recalls compliance with Article 8, Law No. 300 of May 20, 1970, and Article 10 of Legislative Decree No. 276 of September 10, 2003, as a condition of lawfulness of processing; in this regard, the Court of Cassation, Civil, September 19, 2016, No. 18302 established that "acquiring and storing data that contain (or may contain) such information already constitutes the integration of the prohibited conduct [...] even if the data is not subsequently used. It is not necessary to subject the collected data to any particular processing to incur in the unlawful act, since the mere acquisition and storage of their availability constitutes a violation of the legislative provision").

In fact, the systematic monitoring of logs of communications made through email and company phone, as well as internet browsing, even if exclusively and abstractly related to the work and professional sphere (according to what is provided in the specific case by the company disciplinary) may concern - even incidentally - aspects (e.g., trade union relations, relationships between colleagues, including private ones, health status, etc.) capable of revealing to the employer information that, based on the legal system, should not be known by the latter.

That said, it is noted that, with the defensive memoranda, the Company declared that during the proceedings before the Guarantor it conducted "an in-depth analysis [...] with the supplier of the IT systems [during which it emerged] that no system for tracking log files is installed, other than the event log that is part of all Windows systems. The company IT system also provides for the evening execution of a backup that concerns all documents that have been created or modified in the shared folder Ambiente2000. Once a week, the system performs a complete backup. Daily, a backup of the Winwaste database, the waste management software, is also performed" (defensive memoranda April 12, 2024, p. 3).

In this regard, it is observed, however, that the Company has not provided any evidence and/or documentation (if applicable, also from the IT service provider) of the non-existence of systems suitable for carrying out what is indicated in the internal disciplinary. At the same time, the Company also claimed in this regard that "it does not carry out and has never carried out systematic checks on the use of employees' electronic tools but reserves the right to carry out targeted access or checks ex

post in the case of prolonged absence or impediment of the person in charge that makes it essential and urgent to intervene for exclusive operational needs.”

****Corporate Internal Regulations on the Correct Use of IT Tools, Email, and Internet Browsing****

1. **Introduction**

The company has initiated a dialogue with an external Privacy consultant for the review of the content of the internal regulations and its actual application in daily practice.

2. **Responsibilities of the Data Controller**

It is the responsibility of the data controller, based on the principle of accountability (pursuant to Article 5, paragraph 2 of the Regulation), to process personal data in a manner that respects the general principles established by the regulations on personal data protection (see Article 5, paragraph 1 of the Regulation), even when relying on professionals who must always operate based on the instructions and specific indications regarding the purposes and means of processing provided by the data controller (see Article 4, no. 7 of the Regulation).

3. **Current Status of Internal Regulations**

The internal regulations adopted by the Company, which has been made known to employees since September 2019 and is still in effect, albeit under "review," grants the data controller/employer the authority to carry out processing operations that, for the reasons extensively outlined above, are not compliant with the applicable regulations.

4. **Lack of Clarity on Monitoring Activities**

Furthermore, the Company has generically represented the subject of the revisions to be made to the regulations that it would commission to the external consultant. The indication of specific "targeted" monitoring activities that it reserves the right to carry out in the event of needs related to "prolonged absence or impediment" of the assigned employee, as well as unspecified "business operational needs, system security, or suspicion of illegal activities," is also vague.

5. **Data Backup Availability**

Additionally, the Company has not clarified to whom the data subject to backup by the systems is made available, for how long, and for what purposes.

6. **Violation of Principles of Lawfulness and Minimization**

For the reasons outlined above, the processing activities indicated in the "Internal Regulations for the Correct Use of IT Tools, Email, and Internet Browsing" are in violation of the principles of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Articles 113 and 114 of the Code) and minimization (Article 5, paragraph 1, letter c) of the Regulation), as well as Article 88 of the Regulation, which allows national law to provide "more specific measures to ensure the protection of the rights and freedoms regarding the processing of personal data of employees in the context of employment relationships."

7. **Conclusions: Declaration of Illegality of Processing**

For the aforementioned reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore inadequate to allow for the archiving of the present procedure, as none of the cases provided for in Article 11 of the Regulation of the Authority no. 1/2019 apply.

8. **Illegality of Data Processing**

The processing of personal data carried out by the Company, specifically the failure to respond to the request for deletion of personal data as well as the processing activities indicated in the "Internal Regulations for the Correct Use of IT Tools, Email, and Internet Browsing," are indeed illegal, as outlined above, in relation to Articles 5, paragraph 1, letters a) and c), 12, 17, and 88 of the Regulation, as well as Articles 113 and 114 of the Code.

9. **Severity of the Violation**

The violation established in the terms of the motivation cannot be considered "minor," given the nature

of the violation that concerned the general principles of processing, the exercise of the rights of the data subject, and the applicable sector regulations regarding processing, the severity and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

10. ****Consideration of Relevant Factors****

The Authority also took into account the high level of severity of the violation in light of all relevant factors in the specific case, particularly the nature, severity, and duration of the violation, considering the nature, object, or purpose of the processing in question as well as the number of affected data subjects and the level of damage suffered by them.

11. ****Criteria for Assessing the Violation****

The Authority also considered the criteria related to the intentional or negligent nature of the violation and the categories of personal data affected by the violation, as well as the manner in which the supervisory authority became aware of the violation (see Article 83, paragraph 2 and Recital 148 of the Regulation).

12. ****Corrective Measures****

Therefore, in light of the corrective powers granted by Article 58, paragraph 2 of the Regulation, the prohibition of the processing activities provided for in the internal regulations is ordered, as outlined in the motivation, and the application of an administrative monetary sanction is ordered, pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letters f) and i) of the Regulation).

13. ****Issuance of the Injunction Order****

Following the procedure, it has been determined that Ambiente 2000 S.r.l. has violated Articles 5, paragraph 1, letters a) and c), 12, 17, and 88 of the Regulation as well as Articles 113 and 114 of the Code. For the violation of the aforementioned provisions, the application of the sanction is provided. the modalities indicated in the attachment – of a reduced amount equal to euro 10.000 (ten thousand), within the same 30-day period from the notification of this provision.

This decision is made in light of the need to ensure compliance with the principles of effectiveness, proportionality, and deterrence as outlined in Article 83, paragraph 1 of the Regulation, and considering the specific circumstances of the case, including the nature of the violation and the economic conditions of the infringer.

The Authority emphasizes the importance of adhering to the applicable sector regulations concerning data processing in the workplace, as well as the necessity of respecting the rights of the data subjects involved.

This order is issued in accordance with the powers conferred to the Garante by the Regulation and the Code, and it is intended to promote a culture of compliance and respect for data protection laws among organizations operating in the sector.

The Garante will monitor the compliance with this order and may take further action if necessary to ensure adherence to the legal framework governing data protection.

This document is issued in Roseto degli Abruzzi on [date], and it is signed by the Garante. the methods indicated in the attachment - for an amount equal to half of the imposed sanction, within the deadline set forth in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;

pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with a petition filed with the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi